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WHITE PAPER

ABSTRACT

This White Paper lays down the theoretical, spatial, and socio-legal rationale for a reverse-panopticon courtroom model design that aims to systematically restructure the relationship between space, power, and access to justice in the Indian judicial context. Inspired by concept of the Panopticon, Kafka's parable, theory of the spatial impact on social production, work on legal architecture, architectural power, and Universal Design principles, etc. this paper puts forth the argument that the traditional courtroom design is merely an instrument used to discipline, manufacture deference, reproduce exclusion, and causes the administration of justice to turn opaque to the public it was meant to serve. The proposed design is a circular room with a slightly raised judge's dais, floor-level counsel and litigant positions, tiered Colosseum styled seating for the public, a skylight in the ceiling, multiple entry points for various purposes, biophilic and trauma-informed elements, constitute an argument more spatial in nature. The argument being that power should not be hidden in order to have an effect on people, but that visibility, democratically distributed, is a requirement for the legal authority to become legitimate. Additional elements such as digitization, restorative justice configuration, and universal access provisions are included keeping in mind the contemporary design theory and post-pandemic court practices.

1. INTRODUCTION

A courtroom can never be seen as a mere room. Instead, it is a statement of jurisprudence cast in stone, light, and the arrangement of furniture. The physical organisation of the space where justice is served silently communicates who the law is for, who exercises said law, and on whose terms the law can be accessed. The semiotic study of the Supreme Court of India (SCI) shows one that legal architecture subjects the people through "visual relationships, symbolism in subjects"

positioning and control of the avenues of visibility and circulation, panoptic surveillance, separation or isolation.”¹

The gate-pass litigation before the Delhi High Court illustrates a case in which a litigant travelling from Aligarh, Uttar Pradesh was physically denied entry to the court premises for the mere lack of a photo identity card.² He could not appear in his own case. This specific architecture where the gate, the guard, the identity requirement, are all factors in the architecture of exclusion. This is encoded in Franz Kafka’s parable “Before the Law”, where a man from the country who waits a lifetime before a door to the Law that was always meant for him, but through which he was never allowed to enter. The door becomes the institution, and the doorkeeper an allegory for the architecture.

Any space cannot be a neutral container, but instead a social product. “*(Social) space is a (social) product... the space thus produced also serves as a tool of thought and of action... it is also a means of control, and hence of domination, of power.*”³ The space in a Courtroom is produced by its colonial legal histories, its institutional self-interest, and by professional culture and in turn, this further produces the subjectivities of those who move throughout the space. The litigant, who is permitted to enter through a single gate, sits under the legal professionals, is not permitted to reach the level of the judge without any ritual permission, by space, becomes a subject of the law.

This White Paper suggests an alternative of a circular, reverse-panopticon courtroom. This does not completely do away with the hierarchy, but instead causes that hierarchy to be answerable. It does not dissolve judicial authority but instead places it in a field of visibility that causes it to turn from a disciplinary tool into one that is democratic. The following sections further elaborate on this argument through theoretical analysis, description of the space, elaboration on the design elements, and policy recommendation.

¹ Shailesh Kumar, ‘Interpreting the Scales of Justice: Legal Architecture, Symbolism and Semiotics of the Supreme Court of India’ (2017) 30(4) *International Journal for the Semiotics of Law – Revue internationale de Sémiotique juridique*

² *Sajid Ali v State and Others* 2013 VII AD (Delhi) 670

³ Henri Lefebvre, *The Production of Space* (Donald Nicholson-Smith tr, Blackwell 1991).

2. DESIGN CONCEPT AND RATIONALE

2.1 Traditional Courtrooms as a Space of Discipline

The 17th century plague-stricken town with “*a strict spatial partitioning... Each street is placed under the authority of a syndic... Each individual fixed in his place*” encapsulates the disciplinary power in Panopticism.⁴ This segmented enclosure, in which “*all events are recorded, in which an uninterrupted work of writing links the centre and periphery, in which power is exercised without division, according to a continuous hierarchical figure, in which each individual is constantly located, examined and distributed*”⁵ becomes the model of the disciplinary institution. The conventional courtroom can be seen as an almost exact reproduction of the same.

In the traditional courtrooms, one can observe that there is a fixed position in the spatial hierarchy for each actor. The judge’s bench being elevated can be seen as a direct equivalent of the central tower laid down by Bentham. From the bench, everything can be surveilled and it can be seen that deference flows towards the bench. The bar that separates the professional actors from the lay people is the equivalent of the cell walls, as it marks the boundary of movement that has been allowed, which shows that the law is a domain dominated by the specialists. The witness box and the dock, where the accused and other relevant actors stand, is enclosed, visible, and restricts movement and the cell of the Panopticon is literalised in this architectural element.

Architectural power works through “*framing*”, which is the spatial organization of experience in manners in which power relations are naturalized and causes any alternative to become unthinkable.⁶ The elevated benches start to “*frame*” the judicial authority as something that is natural, appropriate, and inevitable. There seems to be no need for any declaration of its superiority; instead it seems to embody it entirely. Those who enter the courtroom are already being disciplined by the time the judge has started to speak. Disciplined by the ceiling height, the formality of the layout, the ritual of the rising, the visual grammar of hierarchy that tells them, before any word is uttered, what their position in this space is.

⁴ Micheal Foucault, “Panopticism” in *Discipline and Punish: The Birth of the Prison* (Penguin 1977).

⁵ *ibid.*

⁶ Kim Dovey, *Framing Places: Mediating Power in Built Form* (Routledge 1999)

This function of the courtroom space is corroborated by Mulcahy's study, "Legal Architecture: Justice, Due Process and the Place of Law", which show that the courtroom design in common law jurisdictions has historically served the interests of legal professionals and the arrangements of courts, such as the positioning of the public, the inaccessibility of the judge, the physical barriers between participants, which systematically disadvantage the unrepresented parties, thereby reinforcing the authority of legal professionals, and communicate to lay participants that the law is not theirs to navigate.

2.2 The Inversion of the Panopticon

The conventional courtroom replicates the disciplinary logic of the panopticon perfectly. The judge, elevated and frontally lit, occupies the position of the tower warden, clearly seeing while remaining partially screened by height, distance, and ritual formality. All other participants are rendered visible to this central authority while the authority itself is shielded. The power relation is asymmetric and self-reinforcing.⁷

Foucault identifies the democratic potential in inverting this. The Panopticon, when rightly rearranged, could be seen as a transparent building in which society can supervise the exercise of power, making it a space where any member of the public is able to witness how the institutions function. The proposed circular courtroom achieves this inversion, and its architectural logic draws on a much older theatrical tradition. The Roman Colosseum placed the spectacle at the centre while thousands of tiered observers surrounded from above. The arena was always, inescapably, a performance before a collective witness. A similar architectural structure is seen in the modern tiered classroom, where the professor occupies the floor at the centre and students arc upward and outward around them: authority is not elevated above the audience but encircled by it, held within the audience's field of vision instead of being above it.⁸

The proposed room inherits this. Court, here, is explicitly conceived as theatre, not necessarily in the sense of spectacle, but in the original Greek sense of a *theatron*, i.e., a place for seeing. By placing the public in tiered amphitheatre like seating above the proceedings, the design reverses the panopticon see/being-seen relationship: the community looks down at the administration of justice, and the judge, who is only minimally elevated within the circle, is more visible than any conventional court. The gaze has been returned, and power is being watched.

⁷ Linda Mulcahy, *Legal Architecture: Justice, Due Process and the Place of Law* (Routledge 2011)

⁸ This refers to the classroom in BITS LAW School, Academic Block 01.

Erving Goffman's dramaturgical framework in "The Presentation of Self in Everyday Life" elaborates on this. Goffman distinguishes between the "front stage" and "back stage" regions in social interaction: the front stage is where a role is performed before an audience while the backstage is where the performer steps out of role.⁹ The elevated judicial bench functions as a back stage, where the space from which the judicial role is projected while the performer remains concealed partially. The proposed circular design does away with the back stage entirely. With amphitheatre style seating, the audience surrounds the proceedings, causing the room to be entirely front stage. The court as a theater is not to be seen as a metaphor that has been imposed on the design, but as its organising principle. The performance of justice is and always will be before an audience.

3. 3D MODEL DESCRIPTION

The courtroom is a circle that is approximately 20 metres in diameter, organised in three concentric zones. The innermost being the judge's dais, elevated only by 30-35 centimeters, visible and symbolically present but not architecturally dominant. The middle zone consists of curved counsel tables and adjacent litigant seating at floor level, ensuring the litigants are placed within the working space of the hearing rather than being relegated to a corner. The witness position (if needed) is a chair at floor level, without a dock or a cage. The outer zone rises into four amphitheatre tiers, accommodating members of the public across an arc.

A 12-metre circular skylight, fitted with thermochromic film that adjusts opacity to light intensity, spans the centre of the ceiling, providing diffused natural light that falls equally on all participants. Research in environmental psychology confirms that biophilic elements reduce anxiety in formal proceedings, directly improving litigants' capacity to participate.

Four entry points all meet the Universal Design standards: step-free, wide enough for wheelchair users, fitted with tactile paths and audio cues. A distributed sound system ensures no voice is architecturally privileged over another. Hybrid hearing capacity allows even remote participants to appear at a natural human scale on embedded screens.

The design, in its entirety, a spatial argument: that the administration of justice should be visible, accessible, and human in scale.

⁹ Erving Goffman, *The Presentation of Self in Everyday Life* (Penguin 1959)

4. THE GRAMMAR OF THE COURTROOM

This question of what a space is attempting to express and to whom is vital. Many Indian courtrooms located within district courts, sessions courts, and family courts are mostly remnants of colonialism as they were created for the upkeep of imperial order rather than for litigant access.¹⁰ Court buildings continue to stress imperial magnificence over the welfare of litigants even post-independence.¹¹ The architectural environment of courts is a technology of governance that establishes ahead of time who will be familiar with the legal procedure and who will be befuddled.¹² The design of our model courtroom resists that inheritance.

Before a sentence comes out, every aspect of a courtroom communicates. Differentiating between iconographic traditions that truly speak to an indigenous constitutional imagination and those that are adapted from another legal culture is the most challenging endeavour. Our courtroom noticeably lacks the most well-known inherited symbol: the Statue of Justice, blindfolded, holding scales. This decision is not reactionary but rather, it is well-reasoned. Because it is commonly used as an indication of fairness, folly, and the susceptibility of justice to corruption, it is a historically volatile image.¹³ The figure's power has been challenged from within throughout the tradition of portraying justice in democratic courtrooms and Western city-states, with its blindfold being ridiculed as ineptitude and hailed as virtue.¹⁴ Its migration into Indian courts lacks native validity. It came with colonialism and was never subjected to critical analysis. More specifically, an adjudicator wearing a blindfold is the exact incorrect emblem for a judicial system whose most serious shortcomings are not in impartiality but rather in access.¹⁵

¹⁰ Radhika Singha, 'Criminal Law and the Colonial Public' in *A Despotism of Law: Crime and Justice in Early Colonial India*

¹¹ Neha Joshi, 'New Bombay High Court Building Design Colonial, Doesn't Prioritise Litigants: Former Justice Gautam Patel' *Bar & Bench*

¹² Linda Mulcahy, 'Architects of Justice: The Politics of Courtroom Design' (2007) 16(3) *Social & Legal Studies* 383

¹³ Martin Jay, 'Must Justice Be Blind? The Challenge of Images to the Law'

¹⁴ Judith Resnik and Dennis Curtis, *Representing Justice: Invention, Controversy, and Rights in City-States and Democratic Courtrooms* (Yale University Press 2011) ch 6

¹⁵ Günter Frankenberg, 'Before the Law: The Discourse about "Access to Justice" in Comparative Law as Critique' (Edward Elgar Publishing 2016) ch 7

This courtroom provides two intentional symbolic interventions in lieu of that figure. A set of scales is installed on the judge's dais, which is concurrently visible to the public gallery, litigants, and the bar. It would serve as a continuous tangible reminder that adjudication is balancing conflicting claims rather than an exercise of authority. Because of its abstract form, which enables each litigant to openly present their distinct, individual matter without feeling alienated, it seeks to visibly balance opposing rights and interests and thus, both sides are purposefully left empty. Their positioning on the judge's dais, facing outward, is also a political gesture since it presents the weighing symbol as a prominent public object rather than an adornment of the judge's self-regard.

Satyameva Jayate, which means "truth alone triumphs," is engraved beneath the advocate's desk on the side that faces the bench. It is not placed in a traditional or decorative manner. The Mundakopanishad is the source of India's motto, which is inscribed beneath the country's emblem. By designating "Truth Alone Triumphs" as the nation's motto¹⁶, the drafters of the Constitution demonstrated the value they placed on "Truth" as a national ideal. Throughout the entire legal procedure, the truth ought to be the "guiding star". Justice must be built on the basis of truth alone. The purpose of the entire legal system is to identify and ascertain the absolute truth.¹⁷ It serves as a continuous jurisprudential exhortation, not to procedural correctness but to the ethical requirement of the adjudicatory act itself, when it is positioned at the side facing the judge at each point of deliberation, spanning every case.¹⁸

A theoretically supported thesis regarding the relationship between image and institutional culture is reflected in the replacement of the Western Statue of Justice by these two modified parts. The pictures that inhabit legal systems play a role in their formation and these images actively create

¹⁶ "The word 'motto' is defined as "A short sentence or phrase chosen as encapsulating the beliefs or ideals of an individual, family, or institution[3]". Most of the countries invoke God, faith, unity, strength etc., in mottos. By choosing 'Truth Alone Triumphs' as the motto of the newborn nation, the makers of the Constitution signified the importance given to 'Truth' as an ideal for the nation and it stands distinct from the common and usual mottos of most of the countries.[4] The courts in India, except for the Supreme Court, follow the motto 'Satyameva Jayate'." <https://www.livelaw.in/satyameva-jayate-nanritam-truth-alone-triumphs-not-false-hood#_ftn1>

¹⁷ *Maria Margarida Sequeira Fernandes v Erasmo Jack de Sequeira*

¹⁸ <https://www.livelaw.in/satyameva-jayate-nanritam-truth-alone-triumphs-not-false-hood#_ftn1>

values rather than just reflecting them.¹⁹ This courtroom's symbolic program aims to establish values of truthful decision-making, accountability, and balance. We questioned how art serves as a critique of the pretensions of the law. Alfonso Cauduro's thought provoking murals in the Mexican Supreme Court show that, in addition to being aesthetically pleasing, visual interventions in legal places also undermine the authority of the law's prevailing self-image and compel a confrontation with what the law actually accomplishes in real life.²⁰ However, the Indian environment is unsuitable with such a daring, unvarnished, and active integration of art, and it leaves possibility for possible backlash. As a result, the symbolic decisions made in this courtroom are made with the same intention of holding the institution accountable rather than honouring it.

5. RESOLVING THE GRASSROOT-LEVEL CHALLENGES AND TECHNOLOGICAL INTEGRATION

For the majority of litigants, institutional illegibility rather than intentional cruelty is the primary kind of violence in the courtroom. A litigant who is unfamiliar with the court system, its processes, and its results is not an anomaly. They are the modal users in Indian judiciary. A judicial system that is unable to communicate with its users is one that has commodified access to justice by outsourcing intelligibility to middlemen. Ordinary litigants are reliant on the munshi and court clerk to navigate an opaque bureaucratic spiral because of their historical position as intermediary actors who controlled access to procedural expertise as a type of professional capital.²¹

In an effort to deliver a user-friendly, multilingual case and order directory, one kiosk will be installed at the courtroom entrance. This will allow lawyers and litigants to find their matter, comprehend its procedural status, and navigate the cause list without the need for a gatekeeper. A sizable display screen outside the courthouse, based on the live-matter projection systems currently in use, would also guarantee that everyone could follow events without special access to paper

¹⁹ C Corcos, 'Magical Images in Law' in A Wagner and L Cheng (eds), *Exploring Courtroom Discourse: The Language of Power and Discourse* (Ashgate Publishing Limited 2013) 131

²⁰ Luis Gómez Romero, 'Beyond the Atlantic Gaze, or, a Mexican View on Art, Death, Time and Law' (2020) XXII(3) *Etica & Politica / Ethics & Politics* 459

²¹ Charles Morrison, 'Munshis and Their Masters: The Organization of an Occupational Relationship in the Indian Legal System' (1972) 31 *The Journal of Asian Studies* 309.

lists or personal contacts. Additionally, the model includes colour-coded case progress indications, or a traffic-light logic that communicates pending, in-process, concluded, and deferred status without requiring reading, for litigants who are illiterate. Since the system presupposes an educated, legally initiated subject, this is not a concession to a minority user but rather an acknowledgement of the true demographic of Indian courts.²²

In order for judges, attorneys, and witnesses to be heard across the courtroom, ceiling-mounted microphones guarantee acoustic legibility. This is a functional requirement for participation, not a luxury. AI-assisted but manually monitored live transcription and translation to be available on digital display screens, making proceedings in one language understandable to speakers of other languages. The availability of real-time translation is an acknowledgement of linguistic rights ingrained in the constitutional framework for communities that have traversed the judicial system as strangers to its linguistic and procedural standards.²³ Because the people in the courtroom are citizens with rights to connectivity rather than a supplicant subjected to institutional suffering, charging ports and Wi-Fi across the courtroom convey something that may seem unimportant but is strategically significant. An additional assertion that the courthouse is a place that solicits and is responsible for the feedback of the people it serves is made via a public suggestion box outside the courtroom.

The use of biophilic components, such as natural light, indoor plants, and organic materials, is supported by empirical research on how environmental stresses impact people's emotional and cognitive states when making important decisions.²⁴ For the majority of people, courtrooms are among the most stressful places they will ever be. There is no place for compromise when it comes to how the built environment either lessens or increases stress. The intentional incorporation of natural elements into institutional settings, known as biophilic design, has been shown to lower

²² Veena Das, 'Sociology of Law' in *A Survey of Research in Sociology and Social Anthropology*, vol 2 (Indian Council of Social Science Research ed, Popular Prakashan 1974).

²³ Mitra Sharafi, 'Using Law: Colonial Parsis Go to Court' in *Law and Identity in Colonial South Asia: Parsi Legal Culture, 1772–1947* (Cambridge University Press 2014) 37.

²⁴ Stephen Kellert, Judith Heerwagen and Martin Mador (eds), 'Biophilic Design: The Theory, Science and Practice of Bringing Buildings to Life' (Wiley 2008)

cortisol levels, enhance attention and memory, and create a baseline dignity that encourages rather than prevents participation.²⁵

6. CHALLENGES AND LIMITATIONS

The transformative potential of any design intervention should not be overstated. There is a clear disconnect between legal life and legal form, between what institutions are intended to do and what they actually accomplish when they interact with society. Every design has constraints, and intellectual integrity demands that these limitations be acknowledged. Despite its democratic potential, the AI-assisted transcription and translation system creates a new set of imbalances. If oversight is inadequate, transcription errors are included in the official record. Regional dialects, casual speech, or the linguistic patterns of tribal cultures may cause translation systems that received instruction on legal language from mainstream registers to perform badly. The communities where speech patterns are not as likely to be represented effectively in training data are also the ones most likely to require translation support.

Although the suggestion box has symbolic value, it needs an institutional response system to prevent it from being a futile gesture. Feedback that is gathered but never responded to destroys trust more than no feedback system at all. For the mechanism to carry out its democratic purpose, there must be a well-defined protocol that specifies who examines submissions, how often, and under what circumstances. In a similar vein, users who are not accustomed to technological interfaces need human assistance and routine maintenance for the kiosks. If a damaged kiosk in an underfunded district court is not fixed right away, it becomes a monument to bureaucratic apathy. Any implementation strategy must address the sustainability and maintenance issues raised by the biophilic aspects. For example, living plants in a courthouse need to be cared for, and this care must be budgeted for rather than being considered a decorative expense that may be eliminated during the initial phase of cost reduction. More generally, any design that strives for democratic legibility runs the risk of being underfunded and becoming a replica of itself which makes it accessible without content.

²⁵ *ibid*

7. IMPLEMENTATION AND POLICY SUGGESTIONS

In this paper, a scalable design is suggested. Its components, such as the kiosks, display screens, colour-coded indicators, transcription systems, and biophilic installations, can be standardised throughout the district judiciary and retrofitted into current courtrooms at different investment levels. The policy recommendations listed below are suggested. *First*, the Kiosk's case directory system ought to be specifically integrated into the Supreme Court's continuing e-Courts Mission. Digital records that can be accessed through an intuitive interface have already been produced by the e-courts project, the design effort is mostly focused on linguistic support and interface accessibility rather than new database architecture.

Second, utilising the paradigm of legibility and civic accountability outlined in this paper, the Bar Council of India and the Law Commission should collaborate to commission a nationwide audit of courtroom design against access-to-justice metrics. Ethnographic methods, not just checklist compliance, should be accounted for in the audit. *Third*, the National Legal Services Authority (NALSA) and state legal services authorities should work together to pilot the live transcription and translation system, with clear assessment standards centred on accuracy in regional languages and non-standard legal speech. Prior to a nationwide rollout, the integrated technology system should be piloted in three to five district courts with external ethnographic evaluation.

Fourth, the public suggestion box should be viewed as a tool for gathering data rather than an act of transparency. It should be generated on a regular basis, anonymised, examined by the court administration, and included in an annual report on court accessibility that is made public. *Finally*, an easily accessible explanatory plaque in the public gallery should accompany the semiotic design of the courtroom, the scales, the national motto, and the lack of the imported Statue of Justice. This plaque should explain the significance of the design decisions and the rationale behind them. Instead of forcing the user inside the institution, self-explanatory design encourages them inside.

Conclusion

The foundation of the 3D model courtroom presented in this paper is the consistent claim that, within the Indian constitutional standards, a court's design constitutes a jurisprudential act. The Constitution's mandated ideals of equality, access, and dignity are either upheld or violated by every spatial decision. The national motto that faces the bench, the scales on the judge's dais, the lack of a blinded colonial allegory, the kiosks, screens, microphones, and live walls; none of these are ornamental.

In every aspect, the colonial courtroom conveyed the idea that the law was a kind of authority that was imposed from above. This courtroom suggests that justice is a process that is carried out in plain sight, using easily understood language, and treating each person who enters as a subject of rights instead of an object of procedure. Design is necessary to achieve that goal, but it won't be possible on its own. A court that appears to be owned by the people it serves has already made the statement of what guides it.